

25STCV02051 25STCV02051

County: los-angeles

Division: Civil Law and Motion

Department: 529

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Case Number: 25STCV02051 Hearing Date: August 27, 2026 Dept: 529

DALIA LAVI, et al. vs GENERAL MOTORS, LLC

PLAINTIFFS' MOTION TO STAY PROCEEDINGS

Date

of Hearing: August 27, 2026 Trial

Date: February

9, 2027

Department: 529 Case

No.: 25STCV02051

Moving

Party: Plaintiffs Ardalan Behel

and Dalia Lavi

Responding

Party: Defendant General Motors, LLC

BACKGROUND

On January

24, 2025, Plaintiffs Dalia Lavi

And Ardalan Behel filed a complaint against Defendant General Motors LLC for violations of the Song-Beverly Consumer Warranty Act and fraud. On August 12, 2025, Plaintiffs filed a First Amended Complaint.

[TENTATIVE]

RULING:

Plaintiffs' Motion to Stay Proceedings is DENIED.

DISCUSSION

Plaintiffs Ardalan Behel and Dalia Lavi move to stay all proceedings in the instant matter, pending the Court of Appeal's decision in *Price v. General Motors* (B353231, app. Pending). Plaintiffs make the motion on the grounds that doing so would promote judicial economy and promote the interest of justice by preventing inconsistent verdicts on the same issue of law in superior courts statewide.

A "court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice." (*People v. Bell* (1984) 159 Cal.App.3d 323, 329.) As the Court in *Landis v. North American Co.* (1936) 299 U.S. 248, 254, explained, "the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants." (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 141; see also *Friberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1481, 1489 ["Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency."].)

Plaintiffs argue *Price* will decide a novel legal issue that is implicated in this case: whether a manufacturer's post-filing election into the Song-Beverly Act's new procedural regime can retroactively time-bar a complaint that was already on file when the new statutes of repose and limitations took effect. Accordingly, such a determination would affect the action at hand where Plaintiff purchased the subject vehicle in subject vehicle in 2022 and filed the complaint around 2025.

In opposition, Defendant argues Plaintiff's Motion fails to comply with California Rule of Court 3.1306 as Plaintiff fails to properly request judicial notice of the records; Plaintiff has failed to meet the burden of establishing the balance of equities; and the motion is simply a delay tactic designed to manage its own overwhelming litigation caseload as a matter of last resort.

The court denies the motion to stay proceedings.

First, regardless of taking judicial notice of Exhibits A through C, Plaintiffs have not demonstrated that a stay would be in the interest of justice or promote judicial efficiency. Plaintiffs are seeking a stay for an unknown period of time. This would be highly prejudicial to GM. If needed, Plaintiffs could file a motion for reconsideration after the Court of Appeal makes its ruling.

Based on the foregoing, the motion to stay proceedings is DENIED.